

Muneshwar Prasad Baranwal v. U.P. Power Corporation Ltd. & Another

Allahabad High Court · Division Bench · 10 July 2018 · 2018 SCC OnLine All 4521 · Writ - C No. 22691 of 2018 · **Interim order**
— **recovery notice stayed pending consideration**

HEADNOTE

Interim order. A recovery notice for electricity dues issued nearly nineteen years after the connection was permanently disconnected — here a Nalkoop connection disconnected on 27.5.1999, with a demand of about Rs. 4.32 lakh raised on 26.5.2018 — is met with the plea that, under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005, such an amount cannot be recovered after so long a period, and that the consumer cannot be liable for a period during which supply had ceased. Finding the submissions to have prima facie substance, the Court stayed the operation of the recovery notice pending affidavits and consideration.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

Recovery ~19 years after permanent disconnection — interim stay

QUESTION

(Interim) Can electricity dues be recovered nearly 19 years after the connection was permanently disconnected, in the face of Clause 6.15(b)?

HOLDING

Prima facie, the plea has substance: a recovery notice issued about 19 years after permanent disconnection (27.5.1999), relying on Clause 6.15(b), cannot readily be sustained, and the consumer cannot be liable for a period after supply had ceased. The Court stayed the recovery notice pending affidavits; the matter requires consideration. ¶ 3, 5-9

FLAG Interim order only; final view on the Clause 6.15(b) bar reserved.

PRINCIPLE TAGS

clause-6.15-two-year-bar-mandatory-licensee-duty-to-act A stale recovery for dues long after permanent disconnection engages the Clause 6.15 bar on belated recovery; prima facie such a demand (here ~19 years later) cannot stand, and recovery is stayed pending consideration. ¶ 3, 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DUES ARE BARRED AND WHETHER THEY ACCRUED AFTER DISCONNECTION

Reserved for final hearing; only an interim stay of the recovery notice was granted. ¶ 6